

At the Compliance Part of the Supreme Court of the State of New York,
held in and for the County of Westchester, at the Courthouse located
at 111 Dr. Martin Luther King, Jr. Blvd., White Plains, New York on the
2 day of January, 2020

MS #1

**PLEASE TAKE NOTICE THAT THE PURPOSE OF THIS HEARING IS TO
PUNISH THE ACCUSED FOR CONTEMPT AND THAT THE PUNISHMENT MAY
CONSIST OF A FINE, IMPRISONMENT, OR BOTH.**

**WARNING: YOUR FAILURE TO APPEAR IN COURT MAY RESULT IN
YOUR IMMEDIATE ARREST AND IMPRISONMENT FOR CONTEMPT
OF COURT.**

SUPREME COURT OF THE STATE OF NEW YORK X
COUNTY OF WESTCHESTER

In the Matter of the Application of Stephen Russell to
Enforce a Subpoena for the Testimony of
Stephen Walsh

**ORDER TO SHOW
CAUSE RE
ENFORCEMENT OF A
SUBPOENA TO STEPHEN
WALSH AND FOR
ADJUDICATION OF
CONTEMPT**

Index No.: 70476/19
RJ No.:

HON. JOAN B. LEFKOWITZ, JSC

X

Upon the annexed Petition for Enforcement of a Subpoena for the Testimony of Stephen Walsh and for Adjudication of Contempt ("Petition"), and Affirmation of Ned M. Gelhaar, dated December 16, 2019, and upon all other papers and proceedings had herein, Respondent Stephan B. Walsh is hereby ORDERED to Show Cause before this Court at the Courthouse thereof, 111 Dr. Martin Luther King Jr. Blvd., White Plains, NY 10601, on February 3, 2020 at 2:00 PM, why the relief sought in the Petition should not be granted:

Courtroom 1600

1. That pursuant to CPLR § 2308, Stephen Walsh be compelled to comply with a subpoena duly issued under CPLR § 3119 and ordered to produce documents and appear for deposition in New York on February 3, 2020, and costs be granted to Petitioner in the

amount of \$100.00, together with a penalty in the amount of \$50.00 as partial

recompense for the costs caused by Respondent's noncompliance;

2. That sufficient reason appearing therefore pursuant to CPLR § 2308 and/or Judiciary Law § 753, Stephen Walsh be held in contempt of court;
3. That the Court grant such other and further relief as the Court deems just and proper.

~~IT IS ORDERED~~ that service of a copy of this Order, the affidavit in support, and all other papers upon which this Order is granted upon on or before the ____ day of

____, 20____, be deemed good and sufficient service, and;

~~IT IS ORDERED~~ that Respondent file and serve any opposition to the Petition on or before the ____ day of _____, 20____, and that Petitioner file and serve any reply papers on or before the ____ day of _____, 20____.

JSC

ENTER

Dated: _____, 2019

Hon. _____

ORDERED that movant is directed to serve the Order to Show Cause and supporting papers on respondent, Stephen Brendan Walsh by personal service pursuant to CPLR 308 (1) or (2) on or before January 8, 2020. Movant shall file proof of service of on the NYSCEF website on or before January 21, 2020 by 12:00 P.M.

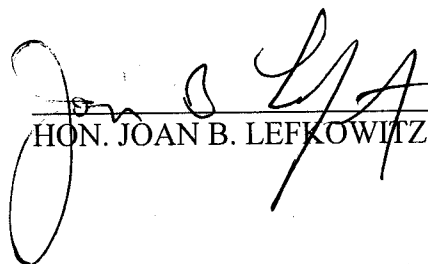
ORDERED that insofar as this case is subject to mandatory Electronic Filing ("E-Filing"), movant is not required to serve the Order to Show Cause upon the parties who have consented to E-Filing.

ORDERED that respondent, Stephen Brendan Walsh shall serve a hard copy of any answering papers and proof of service with the Court on or before January 21, 2020 by 12:00 P.M. Answering papers, if any, and proof of service shall be filed in the Westchester County Clerk's Office (3rd Floor). The Clerk is directed to file any papers filed by hard copy submission on the nYSCEF website.

ORDERED that no reply papers or cross motions shall be accepted.

ORAL ARGUMENT WILL BE HEARD. APPEARANCES OF COUNSEL FOR ALL PARTIES, INCLUDING ANY PARTY APPEARING PRO SE, INCLUDING STEPHEN BRENDAN WALSH, ARE REQUIRED.

Dated: White Plains, NY
January 2, 2020


HON. JOAN B. LEFKOWITZ, J.S.C.